

#	Case Name	Tentative
		knew it was highly probable that the failure to provide decedent with 24-hour supervision would cause plaintiff serious harm/death, but that it consciously disregarded this risk and left him unsupervised instead. (See TAC ¶¶ 3, 16, 19, 26, 29, 55-56.) <u>Motion to Strike Portions of Third Amended Complaint</u> Defendant A Better Life Recovery LLC dba A Mission for Michael's motion to strike portions of third amended complaint is DENIED. The motion is procedurally defective. (See Cal. Rules of Court, rule 3.1322 ["A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense."]; see also Ntc. of Mtn. & Mtn, pp. 1-3.) The case management conference is continued to February 8, 2027 at 9:00 a.m. in Department C28. Defendant shall give notice of all of the above.
56.	Castillo v. Target Corporation 2024-01423525	Plaintiff Sandra Castillo's motion to set aside dismissal is GRANTED. (Code Civ. Proc., § 473, subd. (b) [mandatory relief based on attorney affidavit of fault]; Degani Decl., ¶¶ 6-8; see also <i>Zamora v. Clayborn Contracting Group, Inc.</i> (2002) 28 Cal.4th 249, 257 [mandatory relief even where attorney fault is "inexcusable"].) The court VACATES the 10-13-25 and 12-4-25 orders dismissing this action without prejudice. Defendant's request for judicial notice is GRANTED. The court sets a Case Management Conference for February 8, 2027 at 9:00 a.m. in Department C28. Moving party shall give notice of this ruling.
57.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	Petitioners Matthew R. Silver's petition for an award of reasonable attorney's fees incurred in enforcing the judgment is GRANTED. Code of Civil Procedure § 685.040 entitles a judgment creditor to reasonable fees and costs incurred by enforcing a judgment "if the underlying judgment includes an award of attorney's fees to the judgment creditor pursuant to subparagraph (A) of paragraph (10) of subdivision (a) of Section 1033.5."

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		Section 1033.5(a)(10)(A) allows for the award of attorney's fees when authorized by contract. "Thus, there are two requirements before a motion for an award of postjudgment attorney fees may be awarded as costs: (1) the fees must have been incurred to 'enforce' a judgment; and (2) the underlying judgment had to include an award for attorney fees pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10)(A), which provides that attorney fees may be awarded when authorized by contract." <i>Nash v. Aprea</i> (2023) 96 Cal. App. 5th 21, 28 (citations omitted). Here, the parties arbitrated their dispute based on a clause in their partnership agreement. (ROA 250, Exh. A). The parties further agreed, pursuant to the rules of the arbitral forum, that the arbitrator would determine what attorney's fees to award to the prevailing party in that dispute. That is, the arbitration arose from contract. The judgment includes an award of attorney's fees. (ROA 78). As a result, petitioner is entitled to reasonable attorney's fees expended in enforcing the judgment. The court has reviewed the submittals reflecting the hours sought. The court has reduced the fee request by excluding time spent on activity related to the appointment of a receiver, as that motion was filed after the notice of appeal had been filed which divested this court of jurisdiction. The court has further reduced certain hours based on inefficiencies reflected in the entries. The fees excluded by the court were not expended in enforcing the judgment. The court awards petitioner \$56,203.14 in reasonable attorney's fees and costs. The court declines to award a multiplier. Petitioner shall give notice of this ruling.
58.		
59.	TALG, LTD. v. Ton 2026- 01552440	Defendant Alessandria Jones Ton's, in pro per, Special Motion to Strike is DENIED. <u>Procedural Issues</u> Plaintiff objects to the form of the motion arguing that it is not in conformance with Rule 3.1113(b), which provides that "[a] memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and